

25VECV03457 25VECV03457

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-27

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Case Number: 25VECV03457 Hearing Date: July 27, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

NEDA NOURANI, an individual; NORMAN NOURANI, an individual; and ELINORE NOURANI, an individual,

Plaintiffs,

vs.

FCA US LLC; DEPENDABLE CHRYSLER DODGE JEEP RAM; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 25VECV03457

[TENTATIVE] RULING RE: PLAINTIFFS' MOTION TO COMPEL INITIAL DISCLOSURES

Dept. U

8:30 a.m.

July 27, 2026

BACKGROUND

This case is a lemon law action.

On June 23, 2025, Plaintiffs Neda Nourani, Norman Nourani, and Elinore Nourani filed their original complaint against Defendants FCA US LLC ("FCA") and Dependable Chrysler Dodge Jeep Ram.

On December 10, 2025, Plaintiffs filed their first amended complaint (the "FAC") against Defendants.

On February 25, 2026, FCA filed its answer to the FAC.

On May 29, 2026, Plaintiffs filed their original motion to compel initial disclosures under Code of Civil Procedure section 871.26.

On June 3, 2026, Plaintiffs filed a second motion to compel initial disclosures under Code of Civil Procedure section 871.26. This second motion is substantively identical to the first.

On June 12, 2026, Judge Anthony Mohr entered the parties' joint stipulation and protective order.

As of 5:00 P.M. on July 22, 2026, nothing further had been filed in this matter by any party.

RULING

Both motions are denied.

LEGAL STANDARD

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." Code Civ. Proc., § 871.26 (b).

DISCUSSION

Plaintiffs move to compel initial disclosures under Code of Civil Procedure section 871.26.

Plaintiffs' attorney's declaration concedes that FCA already provided initial disclosures. Plaintiffs found those disclosures insufficient. (See Rucker decl., ¶ 4.)

The cited statute provides no mechanism for trial court intervention where the demanding party takes the position that initial disclosures are insufficient. There is no provision stating that a party may move to compel initial disclosures, let alone that a party may move to compel further disclosures. While the statute provides for sanctions under subsection (j), that provision of the statute is most naturally read to mean that sanctions shall apply where no initial disclosures are provided whatsoever. Where, as here, there is a dispute as to the sufficiency of initial disclosures, there is no statutory mechanism for the trial court to evaluate the sufficiency of disclosures to determine whether sanctions should apply.

Even if the statute directed the trial court to evaluate the sufficiency of disclosures (it does not), Plaintiffs have not provided the text of FCA's initial disclosures for the Court to review.

The motion is denied. No sanctions will issue.

CONCLUSION

The Court DENIES Plaintiffs' motion to compel initial disclosures. The Court ADVANCES the hearing on Plaintiffs' second motion to compel initial disclosures, and that motion is also DENIED.

The Clerk is ORDERED to give notice.

DATED: July 27, 2026

Lee Arian

Judge of the Superior Court